



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 26TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 12TH DAY OF JULY, 2021 AT 9:10 A.M.

PRESENT:

HON. ROSA MIA L. KING

Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT

HON. TOMASITO SANTIAGO C. TURINGAN

HON. APOLONIO B. PANONG

HON. FELIX C. ABAÑO

HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA

HON. ROSSANO C. VALENCIA

HON. NESTOR F. DALIDA

HON. PEDRO S. MUSA – LNB

HON. JUDY ROSE T. GALLARDO

ABSENT:

NONE

Resolution No. 249-2021

RESOLUTION ADOPTING AN ORDINANCE CREATING THE RULES AND REGULATIONS GOVERNING THE OPERATION AND ADMINISTRATION OF THE COMMERCIAL STALLS AT THE GROUND FLOOR OF MARKET TIENDA BUILDING NO. 1 IN DAET, CAMARINES NORTE

WHEREAS, the four (4) - storey building of Market Tienda Building No. 1 was constructed in the land owned by the Municipal Government of Daet described as follows:

"A parcel of land located at Barangay VI, Daet, Camarines Norte, bounded on the North by Market Road; on the south by Vinzons Avenue; on the East by J. Coreses Street; and on the West by J. Lukban Street, containing an area of 1,290 square meters, more or less, which is a portion of a bigger parcel of land covered by ARP No. 006-0526 and PIN-05-000007 in the name of Municipal Government of Daet and assessed at P 1,598,570.00."

WHEREAS, the construction of the New Market Tienda Building No. 1 was realized through a Build-Operate-Transfer (BOT) Contract among LGU Daet, Delfina V.S. Dolor, the Daet Public Market Stallholders Multi-Purpose Cooperative, private individuals Thelma Cu, Teresita Sy, Elizabeth Tan, Baltazar delos Santos, Librado Guerra and Norma Maranan;

WHEREAS, Resolution No. 179 s. 1993 approves the Memorandum of Agreement entered into between LGU Daet and Daet Public Market Stallholders Multi-Purpose Cooperative, Thelma Cu, Teresita Sy, Elizabeth Tan, Baltazar delos Santos, Librado Guerra and Norma Maranan for the construction of the ground floor of Market Tienda Building No. 1 with mezzanine on the front floor at the expense of the latter, subject to the grant of certain rights and privileges;

WHEREAS, Resolution No. 081 s. 1995 as amended by Resolution No. 101 s. 1995 provides for the lease contract of LGU Daet with the stallholders of the ground floor of the New Market Tienda Bldg. No. 1 for the occupancy of the municipal land whereon their individual stalls are constructed for a period of twenty-five (25) years starting April 1, 1996;

WHEREAS, Resolution No. 101 s. 1995 provides that the stallholders/lessees shall renounce, waive, disclaim and turn-over the ownership of their individual stalls in favor of the Municipal Government of Daet, Camarines Norte after the expiration of the period of lease, subject to the right of first refusal of the lessee and provide, further, that the amount of stall rental after the expiration of the period of lease should be fair and reasonable between the parties concerned, taking into account the prevailing rates of rental within the area;

WHEREAS, the contracts of lease **expired on April 2, 2021**;

WHEREAS, the Local Government Code of 1991 empowers the Sangguniang Bayan to enact ordinances, levy taxes, fees and charges, and prescribe the rates thereof for general and specific purposes;

WHEREAS, the Market Code of Daet governs the establishment, classification, administration and operation of various market buildings and structures, including the Market Tienda Bldg. No. 1, as well as the imposition of fines and penalties for violation/s of the provisions thereof;

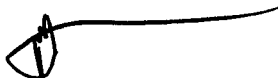
WHEREAS, there is a need to adopt specific rules and regulations in relation to the operation, administration, management of the stalls located at the ground floor of the New Market Tienda Bldg. No. 1, now owned by the Municipality in its proprietary capacity;

WHEREAS, series of negotiations were conducted for the purpose of determining the sentiments and comments of the existing stallholders on the rental rates, operation, administration, and management of the stalls;

WHEREAS, based on the latest actual survey of the Municipal Engineering Office, the ground floor of Market Tienda Building No. 1 consists of stalls and spaces with specific estimated area of 20.52 sq. m. at the ground floor and 34.58 sq. m. at the mezzanine at the front portion, and 14.06 sq. m. at the back portion are now owned by the Municipal Government of Daet, hence, in the exercise of its corporate power adopts specific regulation for its operation;

NOW THEREFORE, after due deliberation, on motion of Councilor Pedro S. Musa, seconded by Councilors Tomasito Santiago C. Turingan, Apolonio B. Panong, Ma. Eliza H. Llovit, William Carlo R. Avila, Felix C. Abaño, Nestor F. Dalida and Judy Rose T. Gallardo;

BE IT RESOLVED, as it is hereby resolved, to adopt:



MUNICIPAL ORDINANCE NO. 423-2021

AN ORDINANCE CREATING THE RULES AND REGULATIONS GOVERNING THE OPERATION AND ADMINISTRATION OF THE COMMERCIAL STALLS AT THE GROUND FLOOR OF MARKET TIENDA BUILDING NO. 1 IN DAET, CAMARINES NORTE

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. Short Title. This Ordinance shall be known as "The Rules and Regulations Governing the Operation and Administration of the Commercial Stalls located at the Ground Floor of the Market Tienda Bldg. No. 1 of Daet, Camarines Norte".

SECTION 2. Scope. This Ordinance shall cover the operation and administration of the stalls and spaces located at the ground floor of the Market Tienda Bldg. No. 1.

SECTION 3. Definition of Terms. As used in this Ordinance, the following terms shall mean as follows:

- a. **Lessee** – refers to a person having a leasehold right over a particular stall at the ground floor of the Market Tienda Bldg. No. 1 under a duly executed contract of lease with the Municipality.
- b. **Lessor** – refers to the Local Government Unit of Daet, represented by its Municipal Mayor, which transfers, conveys, and assigns the possession and occupancy of any stall, space or other structure at the ground floor of Market Tienda Bldg. No. 1 to any qualified person under a contract of lease duly executed in writing.
- c. **Leasehold Right** – refers to the right of use or occupancy for a period of time and such terms and conditions provided under a contract of lease duly executed with the Local Government Unit of Daet.
- d. **Sub-Lessee** – refers to a person in whose favor a sub-lease contract was executed with the Lessee, subject to the prior approval of the Office of the Municipal Mayor.
- e. **Occupancy fee** – refers to the fee intended to be utilized for the maintenance, administration, management and repair of the ground floor of Market Tienda Bldg. No. 1, or portions thereof.
- f. **Stall Rental Fee** – refers to the payment made on a monthly basis for the use of a particular commercial stall located at the ground floor of the Market Tienda Bldg. No. 1 for a period of time specified in the contract of lease.

SECTION 4. AWARDING OF LEASEHOLD RIGHTS. Awarding of Leasehold Rights shall adhere to the following conditions:

- (i) Under Resolution No. 081 s. 1995 as amended by Resolution No. 101 s. 1995, the current stallholders, included in the list of Leaseholders submitted by the



Municipal Treasurer, shall have the right of first refusal in the award of new contracts of lease over the stalls they are occupying, provided that they have complied with all obligations relative to the use and occupation thereof.

- (ii) Any current stallholder, who fails to settle any unpaid taxes or fees and rectify any violation, within ten (10) days from receipt of the demand letter issued by the Office of the Mayor shall be declared delinquent and will forfeit his/her right of first refusal. The stall he/she is occupying shall then be open for bidding to be conducted by the Market Administrator and Municipal Treasurer. Any Lessee declared delinquent shall not be eligible to be later awarded any contract of lease or be a sub-lessee of any stall located at the ground floor of Market Tienda Bldg. No. 1.
- (iii) No person shall be allowed to occupy any stall or sell anywhere at the ground floor of the Market Tienda Bldg. No. 1, except under a duly executed and approved contract of lease.
- (iv) The failure of any Lessee to open the stall awarded to him/her and/or pursue his/her business for at least **thirty (30) consecutive days** for whatever reason shall be a cause for the termination of the contract of lease.
- (v) Any vacant stall will be awarded to the qualified applicant, who shall make and pay the highest bid. The bid shall not be lower than Ten Thousand Pesos (Php 10,000.00). The qualified applicant shall execute a contract of lease for a term of one (1) year, renewable for terms not exceeding one (1) year, subject to compliance with reasonable terms and conditions as the Office of the Mayor may impose.
- (vi) Any stall may be sub-leased, SUBJECT TO THE PRIOR WRITTEN APPROVAL OF THE MAYOR.
- (vii) The LESSEE and his/her SUB-LESSEE, if any, shall secure the appropriate business permits, and pay business taxes.
- (viii) No Lessee or sub-lessee shall sell or extend his/her activities beyond the area allocated to him/her under the relevant contract of lease or sub-lease.
- (ix) The stalls shall not be used as permanent living rooms or sleeping rooms.
- (x) No person shall be allowed to occupy any stall to sell fresh products such as fish, meat, poultry, fruits, vegetables and the likes.
- (xi) After the end of the lease contract, current stallholder shall have the right of first refusal to lease the premises.

SECTION 5. TRANSFER OF LEASEHOLD RIGHTS. The contract of lease may be assigned or transferred to any third person, provided, that the transferee is a legal spouse or a legitimate or legally adopted child of the Lessee, who has not been declared delinquent hereunder, and prior approval in writing of the assignment or transfer is secured from the Office of the Mayor.



SECTION 6. IMPOSITION OF FEES. The stalls and spaces located at the ground floor of Market Tienda Bldg. No. 1 may be leased to any interested person, private entity or agency, subject to payment of the following fees in accordance with the rates herein prescribed:

A. **BID PRICE** – An amount no lower than Ten Thousand Pesos (Php 10,000.00) as a result of bidding conducted in relation to any vacant stall. This will only apply to the stall declared delinquent and forfeited of the right of first refusal.

B. **OCCUPANCY FEE** –

- i. This refers to the fee in the amount of Ten Thousand Pesos (Php 10,000.00) to be paid by the lessee for his/her stall upon the execution of a contract of lease covering the same.
- ii. This fee shall not be imposed upon current stallholders, exercising their right of first refusal under Resolution No. 081 s. 1995. But such occupancy fee shall be imposed to upon said stallholder's assignee or sub-lessee and/or any other lessee obtaining rights to a vacant stall with his/her bid price declared as the highest. This fee shall also be imposed to transferee of leasehold rights.
- iii. The occupancy fee shall be placed in a trust fund to be created and maintained for the maintenance, administration, renovation, management and repair of the ground floor of Market Tienda Bldg. No. 1, or portions thereof.
- iv. The occupancy fee shall be separate and distinct from the bid price to be settled by the highest bidder in relation to a vacant stall.

C. **STALL RENTAL FEE** – a rate which will apply to each stall in accordance with the following:

i. **For existing stallholders exercising their right of first refusal:**

- a) From **2 April 2021 to 31 December 2021**, monthly rental fee shall be due to the LGU-Daet at the same rate as was due monthly based on payment for land rental;
- b) From 1 January 2022 to **31 December 2023**, each stallholder shall pay a monthly rental fee within the first five (5) days of the relevant month at a rate equivalent to three hundred percent (300%) of what was due monthly to the LGU-Daet before the expiration of the contract of lease on 31 December 2021;
- c) From **1 January 2024**, each stallholder shall pay monthly rental fee within the first five (5) days of the month in accordance with the following matrix:



Location	Rate per square meter
Along Vinzons Avenue – front portion of the building:	
Ground Floor	Php 400.00
Mezzanine	Php 50.00
Along Market Road – back portion of the building:	
Ground Floor	Php 200.00

The area of each stall will base on the latest actual survey of the Municipal Engineering Office.

- d) The monthly rent shall escalate every year by Three Percent (3%) of the monthly rental applicable during the prior year.

ii. For qualified applicants with the highest bid:

- i. The qualified applicant shall pay the rates mentioned in Section C (i) (c), plus such escalation as may have been applied against the prior Lessee in accordance with this Ordinance.
- ii. The monthly rent shall escalate every year by Three Percent (3%) of the monthly rental fee applicable during the immediately preceding year.

- D. **SECURITY DEPOSIT** – In the amount equivalent to **Php 10,000.00** to be paid within five (5) days from the signing of the contract of lease.

This amount is refundable to the LESSEE free of any interest thirty (30) days after the termination of the Lease Agreement subject to deduction for whatever utility bills and monthly rentals, interests, penalties that have remained unpaid and damages that may have been incurred, provided, that the LESSEE shall still be liable for any and all bills, rentals, interests, penalties and damages that may exceed the security deposit.

The security deposit shall be placed in a trust fund to be created and maintained for the maintenance, administration, and management of the Market Tienda Bldg. No. 1. Provided, that the amount collected from this fee shall be treated as Trust Liabilities.

- E. **OTHER TAXES, FEES AND CHARGES** – the payment of the bid price and the collection of occupancy fee and rental shall be without prejudice to the imposition of business tax, mayor's permit and other fees and charges under the Revised Revenue Code.



SECTION 7. CONTRACT OF LEASE.

- i. Within one (1) month after the award of any stall or space and compliance with all the requirements, each stallholder shall execute a contract of lease with the Municipal Mayor representing the LGU-Daet, in the following form:

CONTRACT OF LEASE

KNOW ALL MEN BY THESE PRESENTS:

This Contract of Lease, made and entered into, by and between the:

LOCAL GOVERNMENT UNIT OF DAET, a government entity duly organized and existing under Philippine laws, with principal address at Barangay Pamorangan, Daet, Camarines Norte, represented herein by its Municipal Mayor, _____, hereinafter referred to as the "LESSOR";

- and -

_____, of legal age, Filipino, with address at _____, hereinafter referred to as the "LESSEE";

WITNESSETH; that -

WHEREAS, the LESSOR is the registered owner of stall no. _____ located at the ground floor of the Market Tienda Bldg. No. 1 situated at Barangay VI, Daet, Camarines Norte;

WHEREAS, the LESSEE desires to lease stall no. _____ and offered to lease the same from the lessor, and the lessor accepted the said offer;

NOW THEREFORE, for and in consideration of the foregoing premises and terms and conditions hereinafter stipulated, the Parties hereby agree as follows:

ARTICLE I PROPERTIES FOR LEASE

1. The LESSOR hereby transfers and conveys the possession and occupation of the stall specifically described as follows:

Bldg. Portion / Stall Number

App. Covered Area (sq. m.)

Front Portion
Stall No. _____
Ground Floor
Mezzanine

(the area will base on the latest
actual survey of the Municipal
Engineering Office)

2. **Inspection; No Warranty.** - The LESSOR leases the Leased Premises to the LESSEE on an "AS IS, WHERE IS" basis. The LESSEE hereby declares



that he/she has inspected the stall prior to the execution of this Lease Agreement, and acknowledges that he/she is fully satisfied with the condition thereof. The LESSOR makes no warranty as to the condition, operational or structural capability, or as to any hidden defects of the stall, which the LESSEE warrants to know by virtue of the LESSEE's duty to inspect.

3. **Conditions Precedent.** - It is a condition precedent for the effectivity of this Contract of Lease that the LESSEE complies with such reasonable terms and conditions as the Office of the Mayor may impose and submits to the LESSOR in cases of (a) single proprietorship a copy of Department of Trade and Industry Registration Certificate, or (b) corporation, partnership or cooperative a copy of its: (i) Articles of Incorporation, (ii) By-Laws, (iii) General Information Sheet, and (iv) Board Resolution specifically authorizing such entity and the person representing the same to enter into this Contract of Lease.

ARTICLE II CONSIDERATION

1. **Occupancy Fee Payment** – Upon the signing of this Contract of Lease, the LESSEE shall pay the LESSOR an Occupancy Fee at the rate of Ten Thousand Pesos (Php 10,000.00), unless exempt therefrom being a current stallholder exercising his/her right of first refusal under Resolution No. 081 s. 1995.
2. **Rental Payment and Escalation Clause.** – On every 5th day of each calendar month, the LESSEE shall pay the LESSOR a monthly rental fee in the amount of _____ (Php_____). The monthly rent shall escalate every year by Three Percent (3%) of the monthly rental fee applicable during the immediately preceding year.
3. **Security Deposit.** - Within five (5) days upon the signing of this Contract of Lease, the LESSEE shall remit to the LESSOR an amount of Ten Thousand Pesos (Php 10,000.00) to serve as security deposit for any unpaid utility bills such as electricity, water, telephone, sanitation, sewerage and others, and to answer for any damages which the stall may suffer as well as to cover any unpaid monthly rent; interests or penalties. This amount is refundable to the LESSEE free of any interest thirty (30) days after the termination of this Contract subject to deduction for whatever utility bills and monthly rentals, interests, penalties that have remained unpaid and damages that may have been incurred, provided, that the LESSEE shall still be liable for any and all bills, rentals, interests, penalties and damages that may exceed this security deposit.

ARTICLE III TERM OF LEASE

1. **Term.** - Unless earlier terminated for reasons stated herein, the term of this Contract of Lease shall be for Seven (7) years to start on _____



and end at noontime on _____. The contract may be renewed upon authorization of the sangguniang bayan, subject to such reasonable terms and conditions.

ARTICLE IV PURPOSE OF THE LEASE

1. **Use of the Leased Premises.** - The LESSEE shall use the Leased Premises strictly and exclusively in accordance to the nature of business contained in their Business Permit. If the Leased Premises are used for other purposes, the LESSOR has the right to:
 - (i) Rescind the Lease Agreement; or
 - (ii) Increase the rent; and/or
 - (iii) Compel the LESSEE to stop the new activity/ies.

In no case shall the Leased stall be used for any illegal, immoral or illicit act or purpose inconsistent with zoning regulations in the public market premises.

2. **Sub-Lease.** - The LESSEE may sub-lease the Leased Premises but only with the prior written approval of the Mayor. The provisions of this Contract of Lease shall be incorporated by reference in the proposed sub-lease agreement. The provisions of the sub-lease agreement shall not be inconsistent with the provisions of the Contract of Lease.

The LESSEE shall ensure compliance by the sub-lessee of all relevant obligations and undertakings under the law, ordinance and contract.

It is understood that the LESSEE shall act as the surety or will be solidarily liable with the sub-lessee for purposes of this Contract of Lease. The LESSEE shall provide LESSOR with a copy of the sub-lease agreement not later than ten (10) days after the execution of the contract.

The sub-lessee shall have no right to further sub-lease the leased stall.

The Lessor and the sub-lessee shall each secure the appropriate business permit and pay the appropriate business taxes.

ARTICLE V DEFAULT

1. **Interest Payment.** - In the event the LESSEE fails to pay his/her rent within the first five (5) days of each month in accordance with Article II.2 herein, the LESSOR shall charge interest on the monthly rent at the rate of Two Percent (2%) per month.

ARTICLE VI CANCELLATION



1. **Grounds for Cancellation.** - The LESSOR may cancel or terminate this Contract of Lease, upon the happening of any of the following events:
 - 1.1. The LESSEE fails to pay its monthly rent when the same falls due.
 - 1.2. The LESSEE or his/ her sub-lessee uses the Leased Premises for purposes other than those specified herein, without prejudice to the options available to LESSOR under Article IV, Section 1 hereof.
 - 1.3 Any person other than the LESSEE or his/her sub-lessee occupies the subject stall;
 - 1.4 The LESSEE or his/ her sub-lessee violates any of the other terms and conditions of this Contract of Lease or fails to get the necessary permits from the national and/or local government units / agencies.
 - 1.5 The LESSEE or his/ her sub-lessee violates the Rules and Regulations Governing the Operation and Administration of the Commercial Stalls located at the Ground Floor of the Market Tienda Bldg. No. 1 of Daet, Camarines Norte, or the Revised Market Code of Daet, or such other rules, regulations, orders as may be duly executed for the administration and management of the ground floor of the Market Tienda Bldg. No. 1.

ARTICLE VII MISCELLANEOUS

1. **Utilities.** - All expenses for water, electricity, telephone, sanitation, sewerage, gas and other public utility services shall be for the account of the LESSEE. The cost of installation of utilities within the Leased Premises, such as water and electricity, shall be for the account of the LESSEE.
2. **Improvements.** - The LESSEE shall not make any structural changes, alterations, additions or improvements on the Leased Premises without the prior written consent of the LESSOR. Any alterations or improvements made or introduced by the LESSEE on the Leased Premises shall, upon the termination of this Lease Agreement, automatically be owned by the LESSOR without any obligation on the part of the LESSOR to pay or refund its value or cost to the LESSEE.
3. **Signs and Advertisements.** - Subject to prior written consent of the LESSOR, the LESSEE may install, erect or affix upon the Leased premises, signs or advertisements as may be necessary to promote and/or advertise the business in which he/she is engaged in. In requesting the approval of the LESSOR, LESSEE should submit a description and the specification of its proposed sign or advertisement, duly inspected and favorably recommended



by the Municipal Engineering Office.

4. **Care of Leased Premises.** - The Lessee shall, at his/her expense, maintain the Leased Premises in a clean and sanitary condition free from noxious odors, disturbing noises or other nuisances. The Lessee, his/her employees, agents or representatives shall not in any manner damage or deface any part of the Leased Premises except for repair/maintenance of the stall with prior written consent with the Lessor.

The LESSEE shall comply with any and all reasonable rules and safety regulations which may be promulgated from time to time by the LESSOR, together with all the rules, regulations, ordinances or laws made by the duly constituted authorities; either by the National or Local government or any of its agencies and instrumentalities, arising from or regarding the use, occupancy and sanitation of the Leased Premises.

5. **General Maintenance, Sanitation, Repairs and Safety.** - The cost of general maintenance and upkeep of the Leased Premises shall be for the account of the LESSEE. The LESSEE shall keep the Leased Premises in a clean, safe and sanitary condition and introduce all the needed repairs at all times.

The LESSEE shall dispose all his/her garbage, waste, and other pollutants in accordance with the rules promulgated by the national or local government.

The cost of general maintenance of the hallways and surrounding of the building shall be for the account of the LESSOR including the collection and disposal of garbage.

All major repairs resulting from damages not attributable to the negligence or bad faith of the Lessee, his/her agent, representative, guest, or customer shall be for the account of the LESSOR. For purposes of this contract, repairs in an amount not exceeding TWENTY THOUSAND PESOS (Php 20,000.00) per occurrence of repairs shall be considered as minor repairs.

In the event that the LESSEE through his/her own fault, bad faith or negligence or that of his/her employees, agents, guests, or customers, or representatives, damages the Leased Premises, and LESSEE fails to repair the damage within a reasonable time, then the LESSEE shall be liable to LESSOR for liquidated damages in an amount equivalent to six (6) months rent without prejudice to such other amounts as may be due LESSOR under this Contract of Lease and/or the law.

6. **Fire Hazard and Obnoxious Substances.** - The LESSEE shall not introduce, keep, deposit or store in the Leased Premises any obnoxious substance or inflammable material or substance not reasonably connected with the herein stated purpose of the lease which might constitute a fire hazard, without the prior written consent of the LESSOR. The LESSEE shall



not likewise install any apparatus, machinery or equipment which may cause obnoxious tremors or noises nor store newspapers, cartons, wood, or other articles of light nature which may expose the Leased Premises to fire or increase its fire hazard.

7. **Inspection of Premises.** - The LESSOR reserves the right to enter and inspect the Leased Premises at reasonable times during business hours and with prior notice. The LESSEE agrees to cooperate with the LESSOR in keeping the Leased Premises in good and tenantable condition.
8. **Assignment.** - The LESSOR reserves the right to assign, transfer or encumber any of its rights and interests under this Contract of Lease to any entity without the need of obtaining the consent of the LESSEE except to notify the latter of the same.
9. The LESSOR likewise reserves its right to renovate, improve, rehabilitate, or even demolish portion of the ground floor of Market Tienda Bldg. No. 1, after the lapse of Contract and terminate the renewal thereof, upon prior written notice of at least six (6) months.
10. **Return of Premises.** - Upon the termination of this Contract of Lease for any reason whatsoever, the LESSEE shall peacefully and immediately vacate the Leased Premises and return possession thereof to the LESSOR in good and tenantable condition, devoid of all occupants, equipment and effects of any kind. Failure of the LESSEE to return the Leased Premises as provided herein shall make it liable to pay liquidated damages to the LESSOR in an amount equivalent to six (6) months rent without prejudice to such other amounts as may be due LESSOR and/or such other remedies available to the LESSOR under this Contract of Lease and/or under the law.
11. **Right to Enter the Premises to Recover Actual Possession.** - Upon the failure of the LESSEE, or the sub-lessee as the case may be, to comply with any of the terms and conditions of this lease or its failure to vacate and return the premises as provided herein, the LESSOR or the authorized representative(s) shall have the right, upon five (5) days written notice to the LESSEE, or upon written notice posted at the entrance of the Leased Premises for the same period, to enter and take possession of the said premises, without need of resorting to any court action, holding, taking custody and impounding such possessions and belongings of the LESSEE found therein after conducting an inventory of the same in the presence of witnesses, until such time that all the rentals, interests, penalties, unpaid utility bills, damages or other amounts due to the LESSOR has been fully settled by the LESSEE. All these acts being hereby agreed to by the LESSEE as tantamount to his voluntary vacation of the leased premises without necessity of suit in court and authorizing LESSOR to use all necessary and reasonable force to break open doors and to enter the premises and take actual possession thereof, and such entry and use of reasonable force shall not be regarded as trespass, nor be sued as such, or in any wise be considered as unlawful.



12. **Transfer of Rights.** - The LESSEE shall not assign, or transfer or encumber its rights under this lease and no right, title or interest thereto or therein shall be conferred on or vested in any other party, except the transferee is a spouse or a legitimate or legally adopted child of the Lessee, who has not been declared delinquent hereunder, and prior approval in writing of the assignment or transfer is secured from the Office of the Mayor.
13. **Indemnity.** - The LESSEE shall hold LESSOR free and harmless from any loss, damage, injury suffered by the LESSEE, its agents or employees, clients, guests or customers or other third persons arising out of the use of the Leased Premises by the LESSEE, its agents, employees, clients, guests, or customers including but not limited to, claims for property damage, personal injury or wrongful death, or losses or damages occasioned by reason of any event or cause which could not be foreseen, or which, though foreseen, were inevitable such as but not limited to fire, earthquake, lightning, typhoons, flood, volcanic eruption, robbery, theft or other crimes. In addition, the LESSOR shall not be liable nor responsible:
- (i) For the presence of bugs, vermin, rats, insects, or other similar creatures, if any, in the Leased Premises;
 - (ii) For the failure of electrical and/or water supply due to causes beyond LESSOR's control;
 - (iii) For any injury, loss or damage which the LESSEE, its agents or employees, might sustain while in the Leased Properties due to causes attributable to the fault of said LESSEE, employees, agents and/or representatives, or those of its clients, guests or customers;
 - (iv) For any damage done or occasioned by, or arising from the plumbing, gas, water, and/or other pipes or air-conditioning system or for the bursting, leaking or destruction of any tank, cistern, washers, and water closets or waste pipelines in, above, upon, or about said Leased Premises, nor for any damage arising from or attributable to acts of negligence of the LESSEE or its agents, employees, representatives or any and all other persons over which the LESSOR has no control.
12. **Non-Waiver.** - The failure of the LESSOR to insist upon a strict performance of any of the terms, conditions and covenants hereof shall not be deemed a relinquishment or waiver of any of the rights or remedies that the LESSOR may have, nor shall it be construed as a waiver of any subsequent breach or default of its terms, conditions and covenants which shall continue to be in full force and effect. No waiver by the LESSOR of its rights under this Lease Agreement shall be deemed to have been made unless expressed in writing and signed by the LESSOR.
13. **Amendments.** - Any amendments or additional terms and conditions to this Contract of Lease must be in writing.
14. **Venue.** - In case of any dispute arising in connection with this Contract of Lease, the Parties hereby agree that the venue for the settlement of the dispute shall fall exclusively within the jurisdiction of the proper courts in



the Municipality of Daet, Camarines Norte, Philippines.

IN WITNESS WHEREOF, the Parties have set their hands and affixed their signatures this _____ in the Municipality of Daet, Camarines Norte Philippines.

LESSOR:

LESSEE:

LGU OF DAET

JUAN DELA CRUZ

SIGNED IN THE PRESENCE OF:

(ACKNOWLEDGMENT)

- ii. Existing stallholders exercising their right of first refusal shall execute a contract of lease with a term of **seven (7) years**, while a qualified applicant with the highest bid shall have a contract for a term of **one (1) year**.
- iii. Any contract of lease may be renewed, subject to authorization of the sangguniang bayan. Provided that the lessee has complied with all the terms and conditions of the contract. Further, within three (3) months before the lapse of the contract of lease, the stallholder who wishes to avail the right of first refusal shall sign the new contract.

SECTION 8. TRANSITORY PROVISION. Upon approval of this Ordinance, all stallholders exercising their right of first refusal shall have **one (1) month period to execute or sign the Contract of Lease with the LGU Daet**. Non-compliance within the prescriptive period will consider as waiver of their right of first refusal.

SECTION 9. TAX DECLARATIONS. Tax declarations that may have been issued covering any stall in the ground floor of Market Tienda Bldg. No. 1 shall be cancelled, and new ones shall be issued in the name of the LGU-Daet. The Municipal Assessors Office shall cause the process of changing the tax declarations for this purpose.

SECTION 10. ADMINISTRATIVE PROVISION. The Municipal Mayor shall exercise general supervision, administration and control over the operation of the Market Tienda Bldg. No. 1 through the Office of the Market Administrator and Municipal Treasurer.

The Municipal Treasurer shall maintain the individual ledger of each stall with the copy of executed contract of lease and other legal documents relative thereto.

The Municipal Mayor shall have the power to impose such rules and regulations, as he may deem reasonable in the implementation or renewal of contracts of lease contemplated under this Ordinance.



The Municipal Mayor is hereby authorized to sign in behalf of the LGU-Daet in the Contract of Lease provided under this ordinance, subject to the terms and conditions herein stipulated.

SECTION 11. REPEALING CLAUSE. All ordinances, resolutions, executive orders and rules and regulations inconsistent and contradictory with the provisions of this Ordinance are hereby repealed, amended or modified accordingly. The Market Code shall be applied suppletorily to this ordinance.

SECTION 12. SEPARABILITY CLAUSE. The provisions of this Ordinance are hereby declared separable. In the event that one or more provisions are held illegal or unconstitutional, the validity of the other provisions shall not be affected.

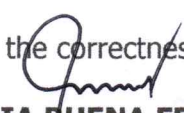
SECTION 13. EFFECTIVITY. This ordinance shall take effect upon approval.

ENACTED.

RESOLVED FURTHER, to furnish copies hereof, the Office of the Mayor, the Office of Municipal Treasurer, the Office of Market Administrator, the stallholders of ground floor of Market Tienda Bldg. No. 1, the Sangguniang Panlalawigan and all others concerned for their information and appropriate action.

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing.


MARIA BUENA FE Z. LUARES
Secretary to the Sangguniang Bayan


COUN. PEDRO S. MUSA
Proponent

ATTESTED: 
ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: AUG 11 2021